

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No. 74655 of 2023

Md. Montu Fakir

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Md. Jahirul Islam Sumon, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 06.02.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in G.R. Case No. 47 of 2022 (Kazirhat) arising out of Kazirhat Police Station Case No. 05 dated 22.07.2022 under Sections 143/341/323/324/326/307/379/506(II) of the Penal Code, 1860, now pending in the Court of learned Chief Judicial Magistrate, Barisal and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that in this case under Sections 143/ 341/ 323/324/326/307/379/506(II) of the Penal Code it has been alleged that the accused petitioner and other co-accused persons struck repeated dao blows on the person of victim Shamim and Nasir causing grievous cut injuries on their hands, legs and head on 02.07.2022.

Mr. Md. Jahirul Islam Sumon, learned Advocate for the petitioner submits that the name of the petitioner stands serial No. 2 of the FIR but no specific overtact has been attributed to him. The petitioner surrendered to the Court of Magistrate in connection of this case on 31.08.2022 but the trial of the case has not yet been begun.

Mr. Sujit Chatterjee, learned Deputy Attorney General raises objection against granting of bail to the petitioner at this point.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

The petitioner voluntarily surrendered in this case. The allegation brought against the petitioner in the FIR is lump in nature. The trial of the case has not yet been begun.

On consideration of the material on record, we are inclined to grant bail to the petitioner.

In above view of the materials on record, we find substance in this petition and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is made absolute.

Let the accused-petitioner namely Md. Montu Fakir, son of late Moslem Fakir be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate, Barishal.

The learned Judge of the Court below is at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner whatsoever.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.